

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEBRA NELSON,

Plaintiff,

vs.

CASE NO. 3:25-cv-1447-MCR-ZCB

**AMENTUM GOVERNMENT
SERVICES PARENT HOLDINGS
LLC, CLARENCE XANDER,
HEATHER GUNN, JANICE
HUGHES, DAKOTA THOMAS,
ELIAS VELASQUEZ and YUSEF
ABDUL-JAMI,**

Defendants.

**DEFENDANTS’ MOTION TO STRIKE PLAINTIFF’S REPLY TO
DEFENDANTS’ RESPONSE IN OPPOSITION TO PLAINTIFF’S MOTION
FOR LEAVE TO FILE SEVENTH AMENDED COMPLAINT**

Defendants, AMENTUM GOVERNMENT SERVICES PARENT HOLDINGS LLC (“Amentum”), CLARENCE XANDER (“Xander”), JANICE HUGHES (“Hughes”), HEATHER GUNN (“Gunn”), DAKOTA THOMAS (“Thomas”), ELIAS VELASQUEZ (“Velasquez”), and YUSEF ABDUL-JAMI (“Abdul-Jami”) (collectively, “Defendants”), pursuant to Local Rule 7.1(I), Local Rules, U.S. District Court for the Northern District of Florida (“Local Rule 7.1(I)”), respectfully file this Motion to Strike Plaintiff’s Reply to Defendants’ Response in

Opposition to Plaintiff's Motion for Leave to File Seventh Amended Complaint (Doc. 57) ("Reply").

I. INTRODUCTION

Plaintiff's Reply should be stricken because Plaintiff neither sought nor obtained leave of Court before filing the Reply, despite being made aware of such requirement by the undersigned counsel before she filed the Reply. Such conduct from Plaintiff is consistent with her prior failures to adhere to this Court's procedural rules. Accordingly, because Local Rule 7.1(I) clearly states that a reply memorandum is not permitted without leave of Court, Plaintiff's Reply should be stricken in its entirety.

II. MEMORANDUM OF LAW

A. Plaintiff's Reply Should Be Stricken Because It Violates Local Rule 7.1(I).

Plaintiff's Reply should be stricken because Local Rule 7.1(I) clearly states that a reply memorandum is not permitted without leave of Court. Local Rule 7.1(I) plainly provides, in relevant part, that "[a] party ordinarily may **not** file a reply memorandum in support of a motion. . . . When leave to file a reply memorandum is required, a party **must** obtain leave before tendering the reply memorandum." U.S. Dist. Ct. L.R. 7.1(I) (emphasis supplied).

Here, Plaintiff filed the Reply without requesting or obtaining leave of Court or showing “extraordinary circumstances,” in direct contravention of Local Rule 7.1(I). This procedural defect warrants striking the Reply.

Plaintiff’s *pro se* status does not excuse this failure. It is well established that *pro se* litigants are required to comply with applicable procedural rules. *Gross v. UPS*, No. 23-10808, 2024 U.S. App. LEXIS 7233, at *6 (11th Cir. Mar. 27, 2024). This Court has routinely stricken improper filings by *pro se* parties where, as here, they fail to adhere to local rules governing motion practice. *See Harris v. Bath & Body Works, LLC*, No. 3:22cv23351-TKW-HTC, 2023 U.S. Dist. LEXIS 241360, at *2 (N.D. Fla. June 28, 2023) (striking reply filed by *pro se* plaintiff for failure to comply with local rules); *Philo v. Reams*, No. 4:11cv394-SPM/GRJ, 2012 U.S. Dist. LEXIS 134644, at *2-3 (N.D. Fla. Sep. 20, 2012) (finding that striking a *pro se* plaintiff’s reply was appropriate because, “although *pro se* pleadings are construed liberally, a *pro se* litigant must comply with applicable rules.”).

Further, before Plaintiff filed the Reply, the undersigned counsel directly advised Plaintiff of the requirement to obtain leave of Court before filing a reply brief and pointed Plaintiff to Local Rule 7.1(I). Nevertheless, Plaintiff proceeded to file the Reply without even attempting to comply with Local Rule 7.1(I). Such flagrant disregard of the applicable rules of procedure should not be tolerated.

Because Plaintiff failed to comply with Local Rule 7.1(I) by not obtaining leave of Court before filing the Reply, failing to demonstrate “extraordinary circumstances” justifying a Reply, or certifying the Word count, the Reply should be stricken in its entirety.

WHEREFORE, Defendants respectfully request that the Court strike Plaintiff’s Reply to Defendants’ Response in Opposition to Plaintiff’s Motion for Leave to File Seventh Amended Complaint and grant any other relief that the Court deems just and proper.

COMPLIANCE WITH N.D. FLA. L.R. 7.1(B) AND (C)

Pursuant to N.D. Fla. L.R. 7.1(B) and (C), the undersigned has conferred with Plaintiff and Plaintiff opposes the relief requested herein. Plaintiff’s position is set forth in **Exhibit A**.

CERTIFICATE OF COMPLIANCE WITH N.D. FLA. L.R. 7.1(F)

Pursuant to N.D. Fla. L.R. 7.1(F), counsel for Defendants confirm this Motion and the supporting Memorandum of Law total 557 words.

DATED this 3rd day of June, 2026.

Respectfully submitted,

JACKSON LEWIS P.C.
501 Riverside Ave., Suite 902
Jacksonville, Florida 32202
Telephone: (904) 638-2655
Facsimile: (904) 638-2656

By: /s/ Lindsay D. Swiger
Lindsay D. Swiger
Florida Bar No. 0045783
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Attorneys for Defendants

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 3rd day of June 2026, a true and correct copy of the foregoing was electronically filed with the Court by using the CM/ECF system and served via e-mail to the following *pro se* Plaintiff:

Debra Nelson
2718 Crestline Drive
North Charleston, SC 29405
denelson62@outlook.com
Pro se Plaintiff

/s/ Lindsay D. Swiger
Lindsay D. Swiger

EXHIBIT A

From: Debra Nelson <[REDACTED]>
Sent: Tuesday, June 2, 2026 5:59 PM
To: Swiger, Lindsay Dennis (Jacksonville)
Cc: Blanton, Zackary A. (Jacksonville)
Subject: Re: Meet and Confer – Pleading Issues and Defendants’ Position

Clarification Regarding Meet and Confer

Counsel,

I am writing only to clarify one point regarding your June 2, 2026 email.

I did not state that I oppose Defendants' anticipated Motion to Strike. My position is that I do not intend to withdraw the Reply that was filed, and I do not intend to file any further response regarding this issue.

As stated previously, if Defendants choose to seek relief from the Court, they may do so, and I will abide by whatever ruling the Court issues.

Accordingly, my position should not be characterized as opposition to a motion that has not yet been filed. Rather, I have simply declined to withdraw the Reply and declined to engage in further briefing on the issue.

Regards,

Debra Nelson
Plaintiff, Pro Se

From: Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>
Sent: Tuesday, June 2, 2026 5:34 PM
To: Debra Nelson <[REDACTED]>
Cc: Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>
Subject: RE: Meet and Confer – Pleading Issues and Defendants’ Position

Ms. Nelson:

Thank you for your response. We will advise the Court that you oppose Defendants’ Motion to Strike the Reply.

Regards,
Lindsay Swiger



Lindsay D. Swiger
Attorney at Law

Jackson Lewis P.C.
501 Riverside Ave
Suite 902

Jacksonville, FL 32202

Direct: (904) 638-2657 | Main: (904) 638-2655 | Mobile: (904) 703-3411

Lindsay.Swiger@jacksonlewis.com | www.jacksonlewis.com

From: Debra Nelson <[REDACTED]>

Sent: Tuesday, June 2, 2026 5:28 PM

To: Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>

Subject: Re: Meet and Confer – Pleading Issues and Defendants’ Position

Subject: RE: Plaintiff's Reply

Counsel,

Thank you for your email.

I do not intend to withdraw the Reply that was filed. I also do not intend to file any further response regarding this issue.

If Defendants wish to seek relief from the Court, they may do so, and I will abide by whatever ruling the Court issues.

Regards,

Debra Nelson
Plaintiff, Pro Se

From: Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>

Sent: Sunday, May 31, 2026 9:43 AM

To: Debra Nelson <[REDACTED]>

Cc: Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>

Subject: RE: Meet and Confer – Pleading Issues and Defendants’ Position

Good morning Ms. Nelson:

We are in receipt of Plaintiff’s Reply to Defendants’ Response in Opposition to Plaintiff’s Motion for Leave to File Seventh Amended Complaint which was docketed as filed on May 19, 2026. As we advised below, the U.S. District Court for the Northern District of Florida does not permit the filing of a reply memorandum without first obtaining permission from the Court to file one. See L.R. N.D. Fla. 7.1(l). You have not obtained leave of Court to file a reply memorandum. Accordingly, we intend to file a Motion to Strike Plaintiff’s Reply unless you agree to withdraw it. Please let us know your position on this issue so that we can take appropriate action.

Sincerely,
Lindsay Swiger



Lindsay D. Swiger

Attorney at Law

Jackson Lewis P.C.

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Direct: (904) 638-2657 | Main: (904) 638-2655 | Mobile: (904) 703-3411
Lindsay.Swiger@jacksonlewis.com | www.jacksonlewis.com

From: Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>
Sent: Friday, April 3, 2026 7:42 AM
To: Debra Nelson <[REDACTED]>
Cc: Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>
Subject: RE: Meet and Confer – Pleading Issues and Defendants’ Position

Dear Ms. Nelson:

Defendants fully set forth their position as to why the proposed Seventh Amended Complaint fails to state a claim in their Response in Opposition to Plaintiff’s Motion for Leave to File Seventh Amended Complaint. Likewise, Defendants fully set forth their position as to why Plaintiff’s Sixth Amended Complaint fails to state a claim in their Motion to Dismiss Sixth Amended Complaint.

We are in receipt of your Reply to Defendants’ Response in Opposition to Plaintiff’s Motion for Leave to File Seventh Amended Complaint. The U.S. District Court for the Northern District of Florida does not permit the filing of a reply memorandum without first obtaining permission from the Court to file one. See L.R. N.D. Fla. 7.1(l).

Regards,
Lindsay Swiger



Lindsay D. Swiger
Attorney at Law

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[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]